

		the notice packet should be attached as exhibits to the proposed order. The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is continued to <u>February 11, 2027 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
4	Ellerbe v. New 2025-01531044	<u>Defendant Brad New's Demurrer to First Amended Class Action Complaint</u> Defendant Brad New demurs to the five causes of action in plaintiffs Kim Ellerbe, Brittany Akal and Tiffany Washington's first amended class action complaint. Plaintiffs did not file an opposition. Defendant's demurrer is therefore sustained for the reasons stated in the demurrer and supporting brief. ROA 34. Defendant asks that his demurrer be sustained without leave to amend. A demurrer should be sustained without leave to amend if there is no reasonable probability that the complaint can be cured by amendment. <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318. The burden of proving such reasonable possibility "is squarely on the plaintiff." <i>Id.</i> As noted, plaintiffs did not file an opposition and thus have not demonstrated that any deficiencies in the first amended complaint can be cured by amendment. Defendant's demurrer is sustained without leave to amend. Defendant's Request for Judicial Notice (ROA 32) of Exhibits 1 and 4 is granted, insofar as a court may take judicial notice of the existence of a document in a court file, including the truth of results reached, but a court may not take judicial notice of the truth of hearsay statements in decisions and court files. <i>Richtek USA, Inc. v. UPI Semiconductor Corp.</i> (2015) 242 Cal.App.4h 651, 658. Defendant's Request for Judicial Notice of Exhibits 2 and 3 is denied as it is not necessary to seek judicial notice of documents in the court's file for this action. Defendant's Request for Judicial Notice of Exhibits 5,6 and 7 is denied. Defendant to give notice and to submit a proposed judgment of dismissal by September 24, 2026.

		<u>Defendant Brad New's Motion to Strike Portions of First Amended Class Action Complaint</u> Defendant Brad New moves to strike portions of plaintiffs Kim Ellerbe, Brittany Akal and Tiffany Washington's first amended class action complaint. Plaintiffs did not file an opposition. In a concurrently-issued ruling, the court sustained defendant's unopposed demurrer to the five causes of action in the first amended complaint without leave to amend. Defendant's unopposed motion to strike is therefore denied as moot. Defendant to give notice. <u>Initial Case Management Conference</u> The parties did not file an initial case management conference statement as ordered by the court. 4/30/26 Order (ROA 86); 4/7/26 Order (ROA 27). Plaintiff filed a case management conference statement utilizing Judicial Council Form CM-110 (ROA 69), which, as stated in the court's April 7, 2026 order, is not used in this Complex Civil Department. 4/7/26 Order (ROA 27) ("The Initial Case Management Conference Statement shall be filed at least 5 court days before the conference. <i>Counsel should use pleading paper, not Judicial Council Form CM-110</i>, and should include in the statement a discussion of the applicable subjects set forth in California Rules of Court 3.727 and 3.750(b). The parties are encouraged to meet and confer and file a joint statement") (italics added). Nevertheless, in light of the court's concurrently-issued ruling sustaining defendant Brad New's unopposed demurrer to the first amended class action complaint without leave to amend, the September 17, 2026 Initial Case Management Conference is vacated. Clerk to give notice.
5	Escoto v. VPM Management, Inc. 2021-01232970	<u>Maria Yesenia Escoto Calderon and Rosario Esmaralda Escoto's Motion for Leave to Substitute Successors-in-Interest</u> Maria Yesenia Escoto Calderon and Rosario Esmaralda Escoto move pursuant to Civil Procedure Code section 377.31 for leave to substitute themselves as plaintiffs and successors-in-interest for plaintiff and decedent Jose Escoto in this class action and PAGA lawsuit. For the following reasons, the motion is denied without prejudice. Section 377.31 provides: "On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest." Pursuant to section 377.32(a), a person who seeks to commence an action or proceeding or to continue a pending action or proceeding as the decedent's successor in interest shall execute and file an affidavit or a declaration stating all of the following: